

ART OF UNDERSTANDING THE PATENT

If you are unfamiliar with patents, a patent document may seem difficult to understand or even incomprehensible. Here are some tips to make reading it simple for you



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A patent is a legal document that provides certain rights to the owner of the patent. This complex document is made up of several parts, including a specification that describes the invention and how to make and use it, and a series of claims that specify what the actual invention is, that is, what is protected by the patent.

It is necessary to know the patent law to write a patent application or understand the patent document. Nonetheless, this article attempts to simplify the effort of reading, observing and analysing patent documents successfully.

Parts of a patent application

Every granted patent has a number of headings in the application, and a cover sheet, which contains important information about the patent, is a must.

Cover sheet. For those unfamiliar with patents, or even for those who have worked with patents, the significance of some of the items on the cover sheet is not always fully understood. The cover sheet contains items like the title of the invention, the country which will give the patent, publication number, publication date, inventor's name and patent number. Other items, such as assignee, publication classification and an abstract with a main drawing, are also found on the

cover sheet.

Drawings. A patent drawing must be filed with almost every patent application. It is the drawing by the patent inventor, which explains his invention to the reader in the form of pictorial representation.

Field of invention. The field of invention usually consists of a sentence or two that provide information useful in classifying the patent. It tells about the points of the invention, which are explained further.

Background of the invention. It contains the limitations, disadvantages and cross references of previous related inventions and conventional products related to the present invention. There is often a paragraph or two referring to the earlier patents or published papers with a brief comment as to why the invention is more effective, cheaper or better.

Summary of the invention. It is the succinct description of the invention. Normally, most of the patents have the same description as in the abstract, with addition of one or two paragraphs.

Brief description of the drawings. It simply describes the figures in broad terms, in just one sentence.

Detailed description. This is the main body of the patent application, which describes the invention in detail. In this section, the field and summary of the invention are detailed using references of figures, drawings and tables. This section describes the features of the invention and how to use and